

Court No. - 32

Case :- WRIT - C No. - 32051 of 2018

Petitioner :- Raja Ram Sharma

Respondent :- State Of U.P. And 03 Others

Counsel for Petitioner :- Rajesh Kumar Shukla

Counsel for Respondent :- C.S.C.,Amrendra Nath Singh

Hon'ble Shashi Kant Gupta,J.

Hon'ble Ajit Kumar,J.

As prayed, put up on 24.9.2018 as unlisted.

Order Date :- 20.9.2018

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A perusal of the record shows that the petitioner had earlier approached this Court by means of a Writ Petition No. 29704 of 2018 seeking, inter alia, following reliefs;

"(A) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 3 to consider and calculate the Bill of the petitioner from 29.09.2017 to 06.08.2018 as per Rules of calculation of Bills and adjust the amount which has been paid excess by petitioner.

(B) To consider and decide the application of the petitioner with regard to correction of Bills dated 28.05.2018 pending before the respondent no. 2 within the stipulated period."

This Court, after hearing the learned counsel for the parties and the perusing the record, had finally disposed of the writ petition with a direction to the petitioner to avail alternative remedy under Clause 6.5 of the UP Electricity Supply Code, 2005 to ventilate his grievance.

It appears that the petitioner filed a representation before the concerned authority on 4.9.2018 and the same has been decided by the Respondent No. 3, Executive Engineer on 6.9.2018.

Now the present writ petition has been filed for the following reliefs;

"i) To issue a writ order or direction in the nature of certiorari to quash the order dated 6.9.2018 passed by Respondent No. 3.

ii) To issue a writ, order or direction in the nature of mandamus commanding to the Respondent No. 3 to realize the Electricity Dues on an average of Rupees 11950 Per Month from the period of 29.6.2017 to 05.08.2018.

iii) To issue a writ of Mandamus commanding the

Respondent No. 3 to issue regular Bills Month to Month as and when it falls Due.

iv) To adjust prepaid amount which has paid in terms of surcharge/Penal interest by the petitioner."

At the very outset, Sri Mukesh Singh, learned counsel for the Electricity Department stated that the petitioner has again got an alternative remedy to ventilate his grievances before the Consumer Grievances Redressal Forum under Clause 6.10 of the UP Electricity Supply Code, 2005.

Learned counsel for the petitioner has not disputed the aforesaid contention of the Sri Mukesh Singh, learned counsel for the Electricity Department.

Since the petitioner has got a statutory remedy under Clause 6.10 of the UP Electricity Supply Code, 2005 to ventilate his grievances before the Consumer Grievances Redressal Forum, we are not inclined to entertain this writ petition.

In case, the petitioner approaches the Consumer Grievances Redressal Forum for redressal of his grievance, his application may be considered and decided by the said authority expeditiously preferably within a period of three months by a speaking order in accordance with law.

With the aforesaid observation, the writ petition is finally disposed of.

Order Date :- 24.9.2018

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